

Court No. - 21

Case :- WRIT - C No. - 10877 of 2018

Petitioner :- M/S Pawan Putra Ice And Cold Storage

Respondent :- State Of U.P. And 04 Others

Counsel for Petitioner :- Kuldeep Singh Chahar

Counsel for Respondent :- C.S.C., Baleshwar Chaturvedi

Hon'ble Krishna Murari, J.

Hon'ble Ajay Bhanot, J.

Petitioner is aggrieved by the recovery proceedings initiated against it by the respondent-corporation for recovery of its outstanding dues for consumption of electrical energy. Petitioner has an alternative remedy under Clause 7.10 of the Electricity Supply Code, 2005 (in short 'Code, 2005') of approaching the Consumer Grievance Redressal Forum & Ombudsman.

Since the petitioner has a statutory alternative remedy available where the factual dispute being raised by him can be effectively gone into, we are not inclined to entertain the petition and the same is accordingly dismissed leaving it open to the petitioner to invoke the provisions under Clause 7.10 of the Code, 2005, if so advised.

Order Date :- 29.3.2018

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